

IN THE COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO

THOMAS TACKETT)
C/O WARREN LAW FIRM, LLC)
174 WEST MAIN STREET)
CHILLICOTHE, OHIO 45601)

CASE NO.:

(Plaintiff)

Vs

JUDGE:

ABDULLAHI ALI)
2910 FRANKLIN AVENUE)
APARTMENT 1611)
MINNEAPOLIS, MINNESOTA 55406)

AND

HABIL TRANSPORTATION LLC)
C/O BILLIE HASHI)
310 E 38TH STREET, SUITE 203)
MINNEAPOLIS, MINNESOTA 55409)

AND

STATE FARM MUTUAL AUTOMOBILE)
INSURANCE COMPANY)
C/O CORPORATION SERVICE)
COMPANY)
50 WEST BROAD STREET, SUITE 1330)
COLUMBUS, OHIO 43215)

(Defendants.)

**COMPLAINT FOR DAMAGES AND
FOR DECLARATION OF RIGHTS**

Comes now Plaintiff, Thomas Tackett, and for Complaint states the following:

PARTIES

1. Habil Transportation LLC is a Federal Motor Carrier with its main office in Minneapolis, Minnesota 55409.

- _____

- Ali, was driving a 2004 Volvo Boxed Van on

STATUTORY VIOLATIONS OF ABDULLAHI ALI

- al statutes and regulations including O.R.C.

VICARIOUS LIABILITY OF HABIL TRANSPORTATION LLC

- servant or independent contractor for Habil

STRICT LIABILITY OF HABIL TRANSPORTATION LLC

- Habil Transportation LLC is irrelevant. Habil

V. NEGLIGENCE AND RECKLESSNESS BEHAVIOR OF HABIL TRANSPORTATION LLC

12. Habil Transportation LLC had a duty to act reasonably in hiring, training, and supervising Abdullahi Ali.
13. Habil Transportation LLC had a duty to make and enforce rules to ensure Abdullahi Ali did not harm the general public or Thomas Tackett.
14. Habil Transportation LLC had a duty to inspect and maintain its commercial motor vehicle so that it would not harm the general public or Thomas Tackett.
15. Habil Transportation LLC violated these duties and is therefore negligent, reckless, or liable for willful and wanton behavior.

VI. STATUTORY VIOLATION OF HABIL TRANSPORTATION LLC

16. Habil Transportation LLC violated state and federal rules and regulations including O.R.C. 4511.39 among others.
17. Habil Transportation LLC is negligent per se based on those statutory and regulatory violations.

VII. DAMAGES

18. Thomas Tackett was damaged when Abdullahi Ali failed to change lanes properly causing a crash. Thomas Tackett has suffered harms and losses including without limitation past and future medical bills, reduced enjoyment of life, physical pain and emotional suffering, and lost wages.

CAUSATION

19. All of Thomas Tackett's damages, harms and losses were proximately caused by the negligence, recklessness or willful and wanton behavior of Habil Transportation LLC and Abdullahi Ali.

STATE FARM INSURANCE COMPANY – MED PAY

20. State Farm Insurance Company has made payments or may make payments for medical bills for the benefit of Plaintiff. Pursuant to contract or statute, State Farm Insurance Company may have an interest in this matter.

/s/Michael Wm Warren
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